

PROFESSIONAL SERVICES AGREEMENT

This Professional Services Agreement ("**Agreement**") is made and entered into as of **August 13, 2026** (the "**Effective Date**"), by and between:

TechCorp Solutions, a corporation organized and existing under the laws of **Delaware, USA**, with its principal office located at **123 Business Ave, New York, NY 10001** ("**Client**");

AND

DevMasters LLC, an individual or entity organized and existing under the laws of **California, USA**, with its principal office located at **456 Innovation St, San Francisco, CA 94105** ("**Service Provider**").

Collectively referred to as the **Parties** and individually as a **Party**.

1. ENGAGEMENT AND SCOPE OF SERVICES

1.1 Engagement

Client engages Service Provider, and Service Provider agrees to provide the services described in this Agreement (the "**Services**") in accordance with the terms and conditions set forth herein.

1.2 Scope of Services

Service Provider shall perform the following services for Client:

- Development of a custom web application
- API integration and testing
- User acceptance testing (UAT) support

Any additional services not explicitly listed above shall require a written amendment to this Agreement.

1.3 Exclusions

The following services are **explicitly excluded** from the scope of this Agreement:

- Hardware procurement or maintenance
- Third-party software licensing

2. TERM AND TERMINATION

2.1 Term

This Agreement shall commence on the Effective Date and continue until the completion of the Services (the "**Term**"), unless earlier terminated as provided herein.

2.2 Termination for Convenience

Either Party may terminate this Agreement at any time, with or without cause, upon **30 days'** written notice to the other Party.

2.3 Termination for Cause

Either Party may terminate this Agreement immediately upon written notice if the other Party:

- Materially breaches any provision of this Agreement and fails to cure such breach within **15 days** of receiving written notice thereof;
- Becomes insolvent, files for bankruptcy, or is subject to any similar proceeding;
- Engages in illegal or unethical conduct that may harm the reputation of the other Party.

2.4 Effect of Termination

Upon termination, Service Provider shall:

- Cease all work under this Agreement;
- Return or destroy all Client Confidential Information (as defined in Section 6);
- Invoice Client for all Services performed up to the date of termination.

3. COMPENSATION AND PAYMENT TERMS

3.1 Fees

In consideration for the Services, Client shall pay Service Provider the following fees:

- **Project Fee: \$10,000** (due **50% upfront, 50% upon completion**)
- **Hourly Rate for Additional Work: \$150/hour** (due **within 15 days of invoice date**)

3.2 Payment Terms

- Invoices shall be submitted by Service Provider **monthly** and are due within **15 days** of receipt.
- Late payments shall incur a **1.5%** late fee per month.
- All payments shall be made in **USD** via **bank transfer**.

3.3 Expenses

Service Provider shall be reimbursed for all reasonable and pre-approved out-of-pocket expenses incurred in connection with the Services, including but not limited to:

- Travel expenses;
 - Third-party software or tools;
 - Materials and supplies.
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4. DELIVERABLES AND MILESTONES

4.1 Deliverables

Service Provider shall deliver the following to Client:		Deliverable	Description
Due Date			Web
Application MVP	Fully functional web application with core features	September 15, 2026	
API Documentation	Complete API documentation and test cases	September 30, 2026	
UAT Support	Assistance with user acceptance testing	October 10, 2026	

4.2 Acceptance Criteria

Deliverables shall be deemed accepted if Client does not provide written notice of defects or non-conformance within **7 days** of delivery.

4.3 Revisions

Service Provider shall provide **2 rounds** of revisions for each Deliverable at no additional cost. Additional revisions shall be billed at **\$150 per hour**.

5. INTELLECTUAL PROPERTY

5.1 Ownership of Pre-Existing IP

All intellectual property rights in any pre-existing materials, tools, or methods used by Service Provider in performing the Services ("**Pre-Existing IP**") shall remain the sole property of Service Provider.

5.2 Ownership of Work Product

- **Client-Owned IP:** All work product, including but not limited to reports, designs, software, and other deliverables ("**Work Product**"), shall be the exclusive property of Client upon full payment of fees.
- **Service Provider-Owned IP:** Notwithstanding the foregoing, Service Provider retains ownership of any generic tools, templates, or methodologies used in the creation of the Work Product.

5.3 License Grant

Service Provider grants Client a **perpetual, irrevocable, worldwide, royalty-free license** to use, modify, and distribute the Work Product for Client's internal business purposes.

6. CONFIDENTIALITY

6.1 Definition of Confidential Information

"Confidential Information" means any non-public, proprietary, or sensitive information disclosed by either Party, whether in written, oral, electronic, or other form, including but not limited to:

- Business strategies, plans, or financial information;
- Trade secrets, algorithms, or processes;
- Customer or employee data;
- Technical or product specifications.

6.2 Obligations

Each Party agrees to:

- Use Confidential Information solely for the purpose of performing its obligations under this Agreement;
- Not disclose Confidential Information to any third party without the prior written consent of the disclosing Party;

- Implement reasonable security measures to protect Confidential Information from unauthorized access or disclosure.

6.3 Exclusions

Confidential Information does not include information that:

- Was lawfully known to the receiving Party prior to disclosure;
- Is or becomes publicly available through no fault of the receiving Party;
- Is lawfully obtained from a third party without restriction;
- Is independently developed by the receiving Party without reliance on the disclosing Party's Confidential Information.

6.4 Term of Confidentiality

The obligations of confidentiality shall survive the termination of this Agreement for a period of **5 years**.

7. REPRESENTATIONS AND WARRANTIES

7.1 Service Provider Representations

Service Provider represents and warrants that:

- It has the necessary skills, expertise, and resources to perform the Services;
- The Services shall be performed in a professional and workmanlike manner;
- The Work Product shall not infringe upon the intellectual property rights of any third party.

7.2 Client Representations

Client represents and warrants that:

- It has the authority to enter into this Agreement;
- Any materials or information provided to Service Provider for use in the Services do not infringe upon the rights of any third party.

7.3 Disclaimer

EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, **SERVICE PROVIDER MAKES NO WARRANTIES, EXPRESS OR IMPLIED**, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

8. INDEMNIFICATION

8.1 Indemnification by Service Provider

Service Provider shall indemnify, defend, and hold harmless Client from and against any and all claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to:

- Service Provider's breach of this Agreement;
- Service Provider's negligence or willful misconduct;
- Service Provider's infringement of any third-party intellectual property rights.

8.2 Indemnification by Client

Client shall indemnify, defend, and hold harmless Service Provider from and against any and all claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to:

- Client's breach of this Agreement;
- Client-provided materials or information that infringe upon the rights of any third party.

9. LIMITATION OF LIABILITY

9.1 Exclusion of Consequential Damages

IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY **INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES**, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, REVENUE, OR DATA, ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, WHETHER IN CONTRACT, TORT, OR OTHERWISE.

9.2 Cap on Liability

The **aggregate liability** of either Party arising out of or related to this Agreement shall not exceed the **total fees paid or payable** by Client to Service Provider under this Agreement in the **12 months** preceding the event giving rise to the claim.

10. FORCE MAJEURE

Neither Party shall be liable for any delay or failure to perform its obligations under this Agreement due to causes beyond its reasonable control, including but not limited to acts of God, war, terrorism, natural disasters, or labor strikes ("**Force Majeure Event**"). The affected Party shall notify the other Party of the Force Majeure Event as soon as practicable and shall use reasonable efforts to resume performance.

11. GOVERNING LAW AND DISPUTE RESOLUTION

11.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the **State of California, USA**, without regard to its conflict of law principles.

11.2 Dispute Resolution

Any dispute arising out of or related to this Agreement shall be resolved through **mediation** in **San Francisco, California**.

12. MISCELLANEOUS

12.1 Entire Agreement

This Agreement constitutes the entire agreement between the Parties and supersedes all prior or contemporaneous agreements, representations, or understandings, whether written or oral.

12.2 Amendments

Any amendments to this Agreement must be made in writing and signed by both Parties.

12.3 Assignment

Neither Party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other Party.

12.4 Notices

All notices under this Agreement shall be in writing and sent to the addresses specified above or to such other address as a Party may designate by written notice. Notices shall be deemed given:

- Upon personal delivery;
- **5 days** after deposit in the mail (certified or registered);
- Upon confirmation of receipt if sent by email.

12.5 Severability

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

12.6 Waiver

The failure of either Party to enforce any right or remedy under this Agreement shall not constitute a waiver of such right or remedy.

13. SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

CLIENT:

Name: _____ Title: _____ Company: _____
Signature: _____ Date: _____

SERVICE PROVIDER:

Name: _____ Title: _____ Company: _____
Signature: _____ Date: _____
